

PARENTAL NOTIFICATION OF INSTRUCTIONAL MATERIALS WITH SEXUALLY EXPLICIT CONTENT

The purpose of this regulation is to outline the processes and procedures for: the identification of instructional materials with sexually explicit content assigned in classroom instruction, notifying parents in advance, providing parents the ability to inspect and review those materials, and ensuring parents have the opportunity to request alternative materials, in support of Policy 5055.

A. Identification of Materials. This regulation will establish clear procedures for schools to identify all instructional materials with sexually explicit content assigned in classroom instruction.

1. For the purposes of this regulation, the phrases “instructional material” and “instructional materials” mean any content assigned by the teacher for one or more students for an educational purpose, regardless of (a) the material’s format, whether printed, representational, audiovisual, electronic, or digital (such as social media content and software applications accessible through the internet), or (b) the time, place, and manner in which the content is used. Library materials are considered instructional materials when assigned by a teacher to be used (i) for the completion of an assignment from Loudoun County Public Schools (LCPS), or (ii) as part of an academic or extracurricular educational program sponsored by LCPS. This includes any assessments purchased or created by the Division, school, and/or classroom.

2. The phrases “instructional material” and “instructional materials” do not include (1) books or materials that are selected by students for usage in research in classroom assignments; (2) independent reading materials (such as library books, books from home, public library books) that are not selected by an LCPS teacher; or (3) standardized national, or state assessments, such as ACT, SAT, NAEP (National Assessment of Educational Progress), and AP (Advanced Placement), SOL (Standards of Learning), Dual Enrollment, and/or International Baccalaureate (IB) exams.

3. Nothing in the policy requires or permits the censoring of books in LCPS or the designation of instructional material as sexually explicit based solely upon the sexual orientation or gender identity of the characters contained therein.

B. Division-Level Review and Identification Process. The Department of Instruction has established the following process for identifying materials determined to be sexually explicit content under Policy 5055 that is intended to be used for instruction. The Department of Instruction will maintain and publish a list of division adopted or selected resources with sexually explicit content on the LCPS website.

1. Materials with sexually explicit content will be identified by grade and subject.

PARENTAL NOTIFICATION OF INSTRUCTIONAL
MATERIALS WITH SEXUALLY EXPLICIT CONTENT

- a. Books included as part of the language arts curriculum are reviewed for sexually explicit content by at least two teachers. A third reviewer is required where there may be questions or concerns about whether it meets the criteria defined in Policy 5055. The third reviewer may be a staff member or community member as appropriate.
- b. The Department of Instruction curriculum content supervisors are responsible for reviewing Division-approved textbooks or instructional resources to determine if any criteria for sexually explicit content exist and include them in the Division list by grade and by subject.

C. School-Level Review and Identification Process. Principals are responsible for maintaining a current list of instructional materials with sexually explicit content that may be used for instruction at their school. If the school selects resources with sexually explicit content that are not on the list at the Division level, the school is required to review that material before use in instruction and include it on the school website as appropriate.

D. Notification

1. Division-level resources that have been identified as having sexually explicit content will be published on the LCPS website under the Teaching and Learning section—under the Curricular Resources section—by grade and by subject.

2. Schools are responsible for having a Curricular Resources section on their respective school websites which links to the Division-level website. Each school's Curricular Resources section should also list additional school-specific resources by grade and by subject.

- a. Not all resources on the Division list are required to be used by all schools.
- b. Schools are also required to identify any additional resources that the school has selected in addition to the Division-level list that may contain sexually explicit content, by grade and by subject.

3. At least thirty days prior to the intended use of any instructional materials with sexually explicit content, schools shall provide written notice to parents that (i) specifically identifies the instructional materials with sexually explicit content, (ii) informs parents of their right to review such instructional materials, and (iii) informs parents of their right to have their child use, in a non-punitive manner, alternative, instructional materials that do not include sexually explicit content. The written notice should include the title of the material, type of instructional material, author or source, and a brief description of instructional use.

PARENTAL NOTIFICATION OF INSTRUCTIONAL
MATERIALS WITH SEXUALLY EXPLICIT CONTENT

4. Such notice should be provided through regular communication methods with families, including, but not limited to, syllabi, email, newsletters, and learning management systems.

5. Students are regularly engaged in self-selected independent reading of materials from a variety of sources. Teachers do not assign or intend to use specific titles for independent reading. Parents are encouraged to engage in conversation with their students about their ongoing selections. School staff will be available to discuss specific needs of the students and families related to independent reading. Teachers will notify parents of the independent reading requirements at the beginning of each year. If a teacher provides a recommended book list for independent reading, the teacher will provide notification of any sexually explicit content in accordance with Policy 5055 and this regulation.

6. Students may be required to conduct independent research. Students may utilize LCPS or non-LCPS managed resources. LCPS does not monitor or maintain non-LCPS resources. Parents will be notified of independent research requirements and available resources for independent research at the beginning of each year.

E. Parental Review, Requests for Alternative Materials, and Appeals. Schools shall defer to parents to determine whether the use of sexually explicit content in instructional materials, if any, is appropriate for their child.

1. LCPS shall provide online access for parental review of instructional materials intended for use in classroom instruction that include sexually explicit content unless it is not technically feasible or prohibited by copyright protection. Schools shall also have all instructional materials that include sexually explicit content intended for use in instruction available at the school for parent review.

2. Upon a parent's request, schools shall provide, in a manner that is not punitive, alternative instructional materials that do not include sexually explicit content for the student's use. Alternative materials may not be available for content associated with standardized national or state assessments, such as AP, SOL, Dual Enrollment, and/or IB exams.

3. Parents may change their decision concerning the use of alternative instructional materials by providing written notice to the school.

4. To ensure that the teacher has time to prepare alternative materials for students, parents should provide notice no later than five instructional days before the content is to be used in the classroom.

PARENTAL NOTIFICATION OF INSTRUCTIONAL
MATERIALS WITH SEXUALLY EXPLICIT CONTENT

5. Parents who disagree with a determination on whether specific instructional materials include sexually explicit content may reach out to the teacher, principal, or Division staff to discuss their concerns. Any appeals should be pursued in accordance with the process set forth in Policy 5045, Selection, Review and Challenge of Instructional Resources.

Issued: 11/29/22 (Effective 1/1/23)

Legal Refs: Code of Virginia §§ [2.2-2827](#), [18.2-390](#); [22.1-1](#)

Cross Refs: Policy [5045](#), Selection, Review and Challenge of Instructional Resources,
Policy [5055](#), Parental Notification of Instructional Materials with Sexually
Explicit Content